

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**-----X
PRESTON MCNEIL,*Plaintiff(s),*

-against-

THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") JESSICA ROMANCE (Tax ID No. [REDACTED]), individually and in her official capacity, and P.O. JOHN DOE 1 through 10, said names being fictitious and unknown to the plaintiff, the party intended being the person(s) who arrested the plaintiff on or about September 3, 2014,

Defendant(s).
-----X**THE ABOVE NAMED DEFENDANT(S):**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with this Summons to serve a Notice of Appearance, on the plaintiff(s) attorneys within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in the event of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: August 31, 2015
Kew Gardens, New York

Yours, etc.
MICHAEL MANOUSSOS & CO PLLC
By: ADAM NICHOLS, ESQ.
Attorneys for Plaintiff(s)
80-02 Kew Gardens Road, Suite 901
Kew Gardens, New York 11415
(718) 454-8888

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

JESSICA ROMANCE (Detective)
New York City Police Department
1 Police Plaza
New York, New York 10007

P.O. JOHN DOE 1 through 10
New York City Police Department
1 Police Plaza
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
PRESTON MCNEIL,

Plaintiff(s),

-against-

VERIFIED COMPLAINT

Index No.:

Date Filed:

THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") JESSICA ROMANCE (Tax ID No. [REDACTED]), individually and in her official capacity, and P.O. JOHN DOE 1 through 10, said names being fictitious and unknown to the plaintiff, the party intended being the person(s) who arrested the plaintiff on or about September 3, 2014,

Defendant(s).
-----X

Plaintiff, by his attorneys, Michael Manoussos & Co PLLC, complaining of the defendants, respectfully alleges, upon information and belief, as follows:

1. That at all times herein mentioned, plaintiff, PRESTON MCNEIL, was and still is a resident of the County of Queens, State of New York.
2. That at all times herein mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation and/or entity duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform law enforcement and all functions of a police department under the New York State Criminal Procedure Law and acting under the direction and supervision of defendant, THE CITY OF NEW YORK.
4. That at all times herein mentioned, defendant, THE CITY OF NEW YORK, assumed the risks incidental to the maintenance of a police force, to the

employment of police officers, and to the public consumers of the services provided by the New York City Police Department.

5. That at all times herein mentioned, defendants, JESSICA ROMANCE (Tax ID No. [REDACTED]) and P.O. JOHN DOE 1 through 10, were duly sworn police officers and/or detectives of the New York City Police Department, acting under the direction and supervision of the New York City Police Department and/or THE CITY OF NEW YORK and according to their official duties.

6. That at all times herein mentioned, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted under color of state law, with the power and authority vested in them as police officers and/or detectives and incidental to the lawful pursuit of their duties as such, and are sued herein in their individual and official capacities.

7. That the true names and shield numbers of defendants, P.O. JOHN DOE 1 through 10, are not currently known to the plaintiff, other than that it is known that all of these defendants are agents, servants, employees, or officers of New York City Police Department and/or THE CITY OF NEW YORK, and are entitled to representation in this action by the New York City Law Department pursuant to General Municipal Law §50-k and, as such, the New York City Law Department is hereby put on notice that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants becomes known to plaintiff and that the New York City Law Department should immediately begin preparing their defense in this action.

8. That on or about December 2, 2015, in accordance with the General Municipal Law, a Notice of Claim was served upon defendant, THE CITY OF NEW YORK.

9. That such Notice of Claim was served within 90 days after the

cause(s) of action herein occurred.

10. That the aforementioned Notice of Claim, sworn to by the claimant, set forth the name and post office address of the claimant and his attorney, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of injury so far as practical; at least 30 days have elapsed since the service of said Notice and adjustment or payment thereof has been neglected or refused.

11. That on or about February 20, 2015, plaintiff, PRESTON MCNEIL, appeared for an oral examination conducted on behalf of defendant, THE CITY OF NEW YORK, by Billig Law, P.C., 61 Broadway, New York, New York 10006.

12. That this action has been commenced within one year and 90 days from the date of the happening of the incident complained of herein.

13. That this cause of action arose in the County of Nassau, State of New York.

FACTUAL BACKGROUND

14. That on or about September 3, 2014 at approximately 10:45 P.M., while plaintiff was lawfully present at a private residence located at 60 Remsen Avenue, Hempstead, New York, plaintiff was forcibly removed from the private residence against his will and without his consent and was arrested by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acting as agents, servants, employees, or officers of New York City Police Department and/or THE CITY OF NEW YORK.

15. That thereafter, on or about September 3, 2014, plaintiff was transported against his will and without his consent by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, to the 113th Precinct of the New York City Police Department where he was searched, detained, and deprived of his

liberty.

16. That thereafter at the 113th Precinct of the New York City Police Department, on or about September 3, 2014 and into the morning hours of September 4, 2014, plaintiff was interrogated by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10.

17. That thereafter, on or about September 4, 2014, plaintiff was transported against his will and without his consent by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, to Central Booking of the New York City Police Department where he was detained and deprived of his liberty.

18. That thereafter, on or about September 4, 2014, defendant, JESSICA ROMANCE, completed and/or caused to be completed an accusatory instrument and/or felony complaint ("Affidavit").

19. That thereafter, on or about September 4, 2014, defendant, JESSICA ROMANCE, affirmed the statements and contents of the said Affidavit as true, under penalty of perjury, and signed the said Affidavit.

20. That thereafter, on or about September 4, 2014, plaintiff was arraigned at the Criminal Court of the City of New York in a proceeding entitled People of the State of New York v. Preston McNeil, under Docket Number 2014QN052354, on the crimes of New York State Penal Law §110-125.25, §120.10, §265.03, and §265.02 and bail was set at \$250,000.

21. That thereafter, from on or about September 4, 2014 through on or about September 18, 2014, plaintiff was detained, incarcerated, and deprived of his liberty at the Riker's Island Correctional Facility.

22. That thereafter, on or about September 18, 2014, plaintiff returned to

the Criminal Court of the City of New York, where he was offered a plea bargain of 4 years of imprisonment.

23. That thereafter, on or about September 18, 2014, plaintiff declined any plea bargain and reaffirmed his innocence.

24. That thereafter, from on or about September 18, 2014 through on or about October 2, 2014, plaintiff was detained, incarcerated, and deprived of his liberty at Riker's Island.

25. That thereafter, on or about October 2, 2014, plaintiff returned to the Criminal Court of the City of New York, at which time he was released on his own recognizance.

26. That thereafter, on or about November 18, 2014, in open court in the Criminal Court of the City of New York, all charges against the plaintiff were dismissed.

27. That plaintiff was in custody for approximately 30 days.

28. That plaintiff was subject to criminal charges and prosecution without proper cause for approximately 77 days.

29. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

GENERAL ALLEGATIONS

30. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1

through 10, were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

31. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, had no warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason to stop and/or arrest the plaintiff.

32. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, had no warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason to enter the private residence where plaintiff was lawfully present or to remove the plaintiff from therein.

33. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, intentionally placed the plaintiff under arrest without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

34. That a reasonable person or police officer should have known that plaintiff had committed no crime.

35. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, had actual knowledge that plaintiff had committed no crime.

36. That the purported complainant referenced in defendant, JESSICA ROMANCE's, Affidavit in the proceeding entitled People of the State of New York v. Preston McNeil, under Docket Number 2014QN052354, never informed defendant, JESSICA ROMANCE, that the plaintiff had shot said complainant.

37. That the purported complainant referenced in defendant, JESSICA ROMANCE's, Affidavit in the proceeding entitled People of the State of New York v. Preston McNeil, under Docket Number 2014QN052354, never informed any officer

of the New York City Police Department, any individual acting under the direction and supervision of the New York City Police Department and/or THE CITY OF NEW YORK, or any individual acting under the direction and supervision of the Queens County District Attorney, that the plaintiff had shot said complainant.

38. That defendant, JESSICA ROMANCE, never interviewed or received communication from the purported complainant referenced in her Affidavit in the proceeding entitled People of the State of New York v. Preston McNeil, under Docket Number 2014QN052354.

39. That defendant, JESSICA ROMANCE, intentionally, maliciously, recklessly, and/or grossly negligently submitted and/or affirmed to a misinformative and/or disinformative Affidavit.

40. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted with intentional, malicious, careless, reckless, and/or grossly negligent disregard for the truth in arresting the plaintiff.

41. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted with intentional, malicious, careless, reckless, and/or grossly negligent disregard for the truth in falsely accusing the plaintiff of the crimes under New York State Penal Law §110-125.25, §120.10, §265.03, and §265.02.

**AS AND FOR A FIRST CAUSE OF ACTION FOR DEPRIVATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §1983**

42. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "41" as if separately set forth herein.

43. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, under color of state law, subjected the plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. §1983, thereby

depriving plaintiff of his rights, privileges, and immunities secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

44. That plaintiff was deprived of his right to be free from the unreasonable seizure of his person.

45. That plaintiff was deprived of his right to be free from arrest without probable cause.

46. That plaintiff was deprived of his right to be free from false imprisonment and wrongful detention without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

47. That plaintiff was deprived of his right to be free from the lodging of false charges against him.

48. That plaintiff was deprived of his right to be free from having evidence against him fabricated.

49. That plaintiff was deprived of his right to be free from malicious prosecution without probable cause instituted with malice and ultimately resulting in a termination in plaintiff's favor.

50. That plaintiff was deprived of his right to be free from abuse of process.

51. That plaintiff was deprived of his right to be free from deprivation of liberty without due process of law.

52. That plaintiff was deprived of his right to equal protection, privileges, and immunities under the law.

53. That plaintiff was aware of the foregoing rights and did not consent to the deprivation of same.

54. That the acts or omissions described herein were carried out by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, in furtherance of and within the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department and/or THE CITY OF NEW YORK and with the actual and/or apparent authority attendant thereto.

55. That the acts or omissions described herein were carried out by defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, pursuant to the customs, usages, practices, procedures, and/or rules of the New York City Police Department and/or THE CITY OF NEW YORK, all under the supervision of ranking officers of said police department.

56. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

57. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST**

58. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "57" as if separately set forth herein.

59. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, falsely and intentionally arrested the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

60. That the arrest of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.

61. That the plaintiff was aware of his arrest and confinement as described herein, he did not consent to his arrest and confinement, and his arrest and confinement was not privileged by any law or authority.

62. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

63. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

64. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT**

65. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "64" as if separately set forth herein.

66. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, falsely and intentionally imprisoned the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

67. That the imprisonment of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights

68. That the plaintiff was aware of his imprisonment as described herein, he did not consent to his imprisonment, and his imprisonment was not privileged by any law or authority.

69. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

70. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

71. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
ASSAULT**

72. Plaintiff repeats and realleges each and every allegation contained in

paragraphs "1" through "71" as if separately set forth herein.

73. That the physical conduct of defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, which was intentional, placed plaintiff in reasonable fear, alarm, and imminent apprehension of harmful, offensive, and nonconsensual bodily contact.

74. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

75. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
BATTERY**

76. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "75" as if separately set forth herein.

77. That the conduct of defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, which was intentional, resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiff.

78. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

79. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
ABUSE OF PROCESS**

80. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "79" as if separately set forth herein.

81. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, employed regularly issued criminal process against plaintiff compelling the performance or forbearance of prescribed acts.

82. That the purpose of activating this process was with malice and/or the intent to harm the plaintiff, without any excuse or justification.

83. That the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, misused the criminal process in a perverted manner for the purpose of obtaining a collateral objective or corresponding detriment to the plaintiff which was outside the legitimate ends of the process.

84. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

85. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish,

embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

86. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

87. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "86" as if separately set forth herein.

88. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, without probable cause for arrest or prosecution, directly, actively, and maliciously caused a criminal proceeding to be initiated and continued against plaintiff for the purpose of harming and/or punishing the plaintiff for illegitimate reasons.

89. That the criminal proceeding ultimately resulted in a termination in plaintiff's favor.

90. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

91. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

92. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "91" as if separately set forth herein.

93. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, had a duty to protect and to refrain from depriving the plaintiff of his Constitutional rights, falsely arresting the plaintiff, falsely imprisoning the plaintiff, abusing the criminal law process, maliciously prosecuting the plaintiff, and otherwise violating the plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

94. That by the acts and omissions described herein, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, breached their duty to the plaintiff, unreasonably endangering the physical safety of the plaintiff and causing the plaintiff to fear for his physical safety.

95. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

96. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

97. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "96" as if separately set forth herein.

98. That the acts and omissions described herein were so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

99. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted with intent to cause and/or disregard of a substantial probability of causing severe emotional distress to plaintiff.

100. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

101. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION**

102. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "101" as if separately set forth herein.

103. That defendant, THE CITY OF NEW YORK, hired, trained, supervised, and retained defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, despite their known or foreseeable propensity for the injury-causing and tortious conduct alleged herein.

104. That defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in hiring the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10.

105. That defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in training the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10.

106. That defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in supervising the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10.

107. That defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in retaining the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10.

108. That defendant, THE CITY OF NEW YORK, knew of the defendants', JESSICA ROMANCE's and P.O. JOHN DOE 1 through 10's, propensity for the injury-causing and tortious conduct alleged herein.

109. That defendant, THE CITY OF NEW YORK, should have known of the propensity of the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, for the injury-causing and tortious conduct alleged herein had the defendant, THE CITY OF NEW YORK, conducted an adequate hiring, training, supervision, and retention procedure.

110. That defendant, THE CITY OF NEW YORK, failed to investigate defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, despite knowledge of facts that would lead a reasonably prudent person to investigate these defendants.

111. That defendant, THE CITY OF NEW YORK, failed to take corrective action against the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, despite knowledge of facts that would lead a reasonably prudent person to take

corrective action against these defendants.

112. That defendant, THE CITY OF NEW YORK, failed to reasonably control or monitor the defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, despite knowledge of facts that would lead a reasonably prudent person to control and monitor these defendants.

113. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

114. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR / VICARIOUS LIABILITY**

115. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "114" as if separately set forth herein.

116. That defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted in furtherance of and within the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department and/or THE CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of her lawful functions as a police officer.

117. That at all times herein mentioned, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted in furtherance of their employment with

the New York City Police Department and/or THE CITY OF NEW YORK.

118. That at all times herein mentioned, defendants, JESSICA ROMANCE and P.O. JOHN DOE 1 through 10, acted pursuant to the customs, usages, practices, procedures, and/or rules of the New York City Police Department and/or THE CITY OF NEW YORK, all under the supervision of ranking officers of said police department.

119. That as a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

120. That by reason of the foregoing, plaintiff, has been damaged in an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York.

WHEREFORE, plaintiff demands judgment against the defendants for each and every cause of action for an amount which exceeds the jurisdictional limits of all other courts lower than the Supreme Court of the State of New York, together with costs, fees, punitive damages, and such other and further relief as to this Court shall appear just and equitable.

Dated: August 31, 2015
Kew Gardens, New York

Yours, etc.
MICHAEL MANOUSSOS & CO PLLC
By: ADAM NICHOLS, ESQ.
Attorneys for Plaintiff(s)
80-02 Kew Gardens Road, Suite 901
Kew Gardens, New York 11415
(718) 454-8888

ATTORNEY'S VERIFICATION / SIGNING REQUIREMENT

I, ADAM NICHOLS, am an attorney duly admitted to practice law before the Courts of the State of New York, affirm the following under penalty of perjury pursuant to CPLR 2106:

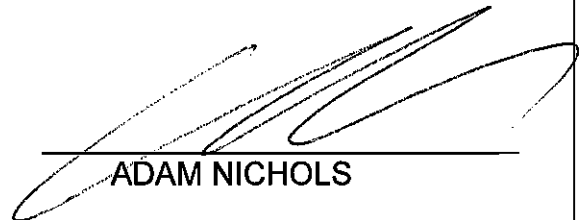
That I am an associate of Michael Manoussos & Co PLLC, attorney of record for the plaintiff(s) in the within action.

That I have read the foregoing **SUMMONS and VERIFIED COMPLAINT** and say:

That I know the contents thereof, the same is true to my own knowledge, except as to those matters I believe to be true. The reason this verification is made by me and not by the plaintiff(s) is that the plaintiff(s) is/are not now in the county where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: conversations with the plaintiff(s) and a review of documentation and the file maintained by my office; and/or,

That the instant papers or the contentions therein are certified, to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, as not frivolous pursuant to Part-130 of the Court Rules.

Dated: August 31, 2015
Kew Gardens, New York


ADAM NICHOLS